

Court No. - 40

Case :- WRIT - C No. - 30681 of 2023

Petitioner :- Satyprakash Singh

Respondent :- State of U.P. and Another

Counsel for Petitioner :- Virendra Singh Tomar, Rajiv Sisodia

Counsel for Respondent :- Alok Mishra

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard Sri Rajiv Sisodia, learned counsel for the petitioner; learned Standing Counsel for the State respondent no.1 and Sri Anuj Tripathi, Advocate, holding brief of Sri Alok Mishra, learned counsel for the electricity department (respondent no.2).

2. Present writ petition is preferred with request to issue direction to the Executive Engineer, Electricity Distribution Division-III, Dakshinanchal Vidyut Vitran Nigam Limited, Aligarh (second respondent) to restore the electricity connection of Tubewell No.781711923125 of 7.5 HP in the name of his father namely Sri Heera Lal, Amroli, District Aligarh.

3. Learned counsel for the petitioner submits that the petitioner is resident of Village Amrauli, Tehsil Gabhana, District Aligarh. The father of the petitioner had taken an electricity connection of tubewell of 7.5 HP for irrigation purpose. The electricity department had raised a bill of Rs.1,46,837/- and the petitioner had deposited an amount of Rs.93,247/- on 15.7.2022 under OTS Scheme, wherein the electricity department has also indicated that the amount of rebate of surcharge i.e. Rs.53,590/- would be adjusted in the forthcoming bill. It is submitted that once the respondent authority had already raised the aforesaid bill and waiver of surcharge of Rs.53,59/- was also indicated in the said bill with further rider that the same would be reflected in the next bill then the electricity department cannot take a stand that there was already permanent disconnection of the electricity connection and the benefit of OTS Scheme was extended to the petitioner later on. It is submitted that the petitioner is still inclined to continue with the old connection and accordingly, the petitioner may be relieved.

4. Per contra, Sri Anuj Tripathi, learned counsel for the electricity department has raised an objection that once the electricity connection had already been permanently disconnected on 20.5.2022 then the petitioner is only entitled to get fresh electricity connection under Clause 4.39 of U.P. Electricity Supply Code, 2005. He has further raised an objection that after the permanent disconnection of the electricity, the benefit of OTS Scheme was

extended to the petitioner and certain benefits have also been extended to him.

5. Considering the facts and circumstances, we are of the considered opinion that once the respondents have already accorded the benefit of waiver of surcharge and the benefit of OTS has also been extended to the petitioner then in such situation the respondents cannot take this objection that the electricity connection was permanently disconnected later on.

6. In view of above, without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case, we direct the Executive Officer, Electricity Distribution Division-III, Dakshinanchal Vidyut Vitran Nigam Limited, Aligarh to proceed strictly in accordance with law. In case the old electricity connection can be revived, the same may also be done in accordance with law.

7. The writ petition is disposed of, accordingly.

Order Date :- 11.10.2023

RKP